

Statement of Constitutional Authority

The enumerated-powers basis for the NSRA and its review status

36 titles · Title 0 findings · Section 205 severability

Enumerated powers

Section 002(4) grounds the Act in the Commerce Clause (Art. I, §8, cl. 3), the Spending Clause (Art. I, §8, cl. 1), the Necessary and Proper Clause (Art. I, §8, cl. 18), and the General Welfare Clause. The Act is drafted to withstand review under current doctrine, including *West Virginia v. EPA* (2022), *Gundy v. United States* (2019), and *TransUnion LLC v. Ramirez* (2021).

Nondelegation and major-questions safeguards

Mandatory trigger parameters are specified by Congress in Section 004 rather than delegated open-endedly to agencies, supplying an intelligible principle responsive to *Gundy* and to the major-questions concerns in *West Virginia v. EPA*. Mechanical triggers and fixed technical thresholds constrain administrative discretion.

Procedural due process

Title XVIII engineers pre-deprivation notice schedules to satisfy *Mathews v. Eldridge*: 45 days for financial clawbacks and penalties, 60 days for operational grid-power and infrastructure restrictions, and 180 days for corporate portfolio and asset divestments. Capital-flight locks require a 24/7 Administrative Law Judge judicial-verification warrant before engagement.

Standing and enforcement

Injury and causation are defined to satisfy *TransUnion* standing requirements. Enforcement authorities and any private rights of action are inventoried per title; the Act relies on strict-liability and mechanical-trigger architecture to limit discretion.

Severability

Section 205 establishes severability and a mandatory fallback to general appropriations, so that invalidation of any provision leaves the remainder operative. Each title is drafted to stand alone — "stronger together, viable apart."

Review status

Domain	Status
Constitutional authority statement & Title 0 findings	Drafted · internally reviewed
Severability architecture (§205)	Drafted · internally reviewed
Nondelegation & major-questions safeguards	Drafted · internally reviewed
Due process schedules (Title XVIII)	Drafted · internally reviewed
Specialist constitutional review	External review requested
Legislative counsel review	Pending institutional review

Internal completion does not imply external validation. External and legislative-counsel review are pending.

Evidence standard: Fiscal and impact figures are NSRA model estimates built on published CBO, JCT, OMB, GAO, Treasury, SSA, OECD, and peer-reviewed baselines — internally modeled and sensitivity-tested, not yet officially scored by CBO or JCT, which is pending and welcomed. Statutory parameters (e.g., the \$35 insulin cap, the 50-unit corporate housing cap) are the text of the bill, not projections. TheAmericanDeal, Inc. is a Wyoming 501(c)(4) civic-education organization; materials are informational and non-partisan.